

Federal Maritime Commission

MAVL Capital, et al.

v.

MARINE TRANSPORT LOGISTICS, INC.,
DIMITRY ALPER

Docket No. 16-16

**MTL's RESPONSE TO
COMPLAINANTS' PROPOSED
FINDINGS OF FACT**

On behalf of the Respondent (Marine Transport Logistics, Inc.), I am respectfully submitting the following response to Complainants' proposed findings of fact. Each response coincides to Complainants' numbering, which begins at page six of their brief.

1. This item does not need a response as the Commission's ruling on remand speaks for itself.

2. Admit.

3. Admit.

4. This item does not need a response as the published tariff speaks for itself.

5. Admit.

6. Admit, except it is not clear as to the time frame.

7. Admit.

8. Admit, however, it should be clarified that Mr. Alper is listed as a QI for an NVO entitled Prestige Shipping Inc.

9. This paragraph repeats the second paragraph. Admit.

10. Admit.

11. Denied. Aleksandr “Solovyev”, not Alla “Solovyeva”, is the “solve owner, officer, and director of Car Express & Import, Inc. (Docket No. 15-05, Initial Decision, dated June 17, 2016, ALJFF ¶20). The Initial Decision on Remand, cites the exact same paragraph of the Initial Decision but contains a typo as it says “Solovyeva” instead of “Solovyev.”

12. Denied. Same situation as in #11 above. The Initial Decision says “Solovyev”, not “Solovyeva”, but the Initial Decision on Remand contains a typo when citing the Initial Decision. The Initial Decision says: “Solovyev is the sole owner, officer, and director of the owner of respondent Royal Finance Group, Inc. (Docket No. 15-05, Initial Decision, dated June 17, 2016, ALJFF ¶22).

13. Denied. Same situation as in #11 and 12. The Initial Decision says “Solovyev”, not “Solovyeva”, but the Initial Decision on Remand contains a typo when citing the Initial Decision. The Initial Decision says: “Solovyev is the owner, officer, and director of World Express & Connection, Inc. (Docket No. 15-05, Initial Decision, dated June 17, 2016, ALJFF ¶23).

14. Admit.

15. Admit.

16. This item does not require a response as the Tariff speaks for itself.

17. Admit.

18. Admit, that “at times” Solovyev or one of his companies acts as an agent.

19. Denied. Complainants used multiple email addresses, including maxim@autolehmann.ru as established in Respondent’s Proposed Findings of Fact.

20. Admit. Additionally, such an email was also sent to Mr. Ostrovskiy’s other email address maxim@autolehmann.ru (See ¶¶2-5 of MTL’s Proposed Findings of Fact). This

explicitly contradicts the Complainants' proposed finding of fact #19 that says that at all relevant times, Complainants used the email address of mcylle@gmail.com.

21. Denied. Complainants, in his own statement of fact #20, concedes that his client received the email from MTL with attached invoices. See also response #20 above.

22. Admit; such e-mail was sent by an MTL employee who had no knowledge of this transaction and was going over outstanding debts due to MTL.

23. See response to #22 above.

24. Denied. The Certification of Alla Solovyeva (Docket Entry #60, pp.2-5), as well as the supporting documents evidencing MTL's multiple notifications to pay for long-overdue invoices, MTL was entitled to exercise a lien over the subject vehicles as MTL is not a storage company, and vehicles generally are stored short term in contemplation of export.

Complainants then claim that the non-party, Car Express & Import, fabricated invoices for the sale of the subject vehicles by Copart. However, as the Complainant's (Mr. Ostrovskiy) certification states: the Mercedes was "imported to the United States from Germany by Complainants", so whatever happened with Copart (addressed further below), happened after Complainants abandoned the subject vehicles and a lien was imposed.

As to the Mercedes, Copart says that they do not recognize the lot #26998321 on the invoice purportedly issued by Car Express, and that the correct bill of sale for this lot is attached, however, Mr. Nussbaum does not enclose this as part of his Appendix.

As to the Porsche, Copart says that "Car Express did not purchase the VIN that is Lot 26975854. The correct bill of sale for the Lot 26998392 is attached." (Volume 1, page 227). This answer is confusing as this "correct bill of sale" is not attached to Mr. Nussbaum's Appendix. Why is Copart stating a different lot number than the one appearing on the Car Express invoice?

Does this mean that they acknowledge the Porsche was sold by Copart, just under a different lot number? Additionally, it is not clear who drafted the invoice at issue, when the Porsche appears to have been purchased at the IAA auction.

MTL incorporates the Certification of Alla Solovyeva as to the explanation as to how Car Express became the “USPPI.” MTL transferred the vehicle to Car Express after Car Express found a client who covered outstanding storages. (Docket Entry #60, pp.2-5).

Additionally, if there are any irregularities as to any invoices, there is no evidence that non-party Aleksandr Solovyev created any of these invoices; it could have been Andrey Tretiyakov. As Mr. Nussbaum’s other client, Mr. Safonov, stated in his certification: “Unbeknownst to me, Mr. Solovyev and Mr. Tretiyakov were engaging in a fraudulent scheme whereby they were importing stolen vehicles (such as the Porsche and Mercedes) into Dubai under the pretense that said vehicles were salvage vehicles. In Dubai, after the vehicles were repaired, they were issued a new title.” (Volume 1, page 115, paragraph 13).

However, what Mr. Nussbaum did not point out to the Court is that Tretiyakov was much more than just an associate of Mr. Safonov (his son was Mr. Safonov’s co-owner) and it was Mr. Safonov who repaired the Mercedes in Dubai. The following is Mr. Safonov’s testimony with respect to the Mercedes:

(Exhibit “2”: page 44:19-25) “Everything that used to be shipped via MTL Solovyev used to come to customs duty house and Andrey and Oleg, his son, used to sign for the receiving of those shipments leaving the boats. It was their responsibility.”

(page 48:16-18) “It’s either Oleg Bartsov or Andrey Tretiyakov, because they sold it eventually.”

It is noteworthy that here Mr. Safonov does not state that Aleksandr Solovyev was involved, rather his co-owner (Oleg) and Andrey Tretyakov.

25. Denied. Mr. Nussbaum includes a self-serving certification of his other client, Mr. Safonov, and says that the “text of the Certification is not disputed.” Who determined, besides Mr. Nussbaum, that the text is not disputed? See response to #24 above.

26. Denied and contradicted by Mr. Safonov’s testimony. Mr. Safonov admitted that he had actually seen these vehicles in Dubai, so there is no question that these vehicles came to his possession. See #53 below.

27. Denied. See #26.

28. Denied. This is not an admission. See #53, where Mr. Safonov admits to seeing the subject vehicles arrive in Dubai.

29. Mr. Ostrovskiy stated in his own complaint that he planned on repairing the subject Mercedes. Docket Entry #1, ¶29.

30. Denied. Additionally, response to #24 is incorporated.

31. Denied. The lien did not materialize “out of the air at the whim of MTL.” The lien materialized because Mr. Ostrovskiy abandoned the subject and non-subject property, as described in Alla Solovyeva’s Certification and accompanying exhibits. (Docket Entry #60). Additionally, the Initial Decision on page 20 determined that “The Commission does not have subject matter jurisdiction to determine whether New Jersey storage facility claiming nonpayment of storage fees not connected to an agreement to transport cargo by water between the United States and a foreign country, had a warehouse’s lien under New Jersey law.”

32. Denied. See response to #24 above.

33. Denied. See Certification of Alla Solovyeva at Docket Entry #60.

34. Admit.

35. As explained in Alla Solovyeva's Certification, MEAA paid for outstanding storage. (Docket Entry #60).

36. Admit that Alla Solovyeva is explaining how the lien arose. Response to #31 is incorporated.

37. Instructions were given as to other property, not the subject vehicles.

38. No response is needed as the Tariff speaks for itself.

39. Admit.

40. Admit that Ms. Bakhirev's testimony is accurate.

41. Mr. Ostrovskiy was in MTL's office, received all the paperwork and viewed the Mercedes in or around November of 2012 when he had to settle the account with Atlantic Cargo Logistics from MTL's office. (See Exhibit 3). Mr. Lutte from Atlantic Cargo wrote to MTL: "The customer showed up at your premises without appointment and is not authorized to take possession of the car."

42. Admit.

43. Admit.

44. Denied. Mr. Alper himself admitted in the quoted text that he has no idea what an XTN number is, therefore, no foundation is provided as to what qualifies Mr. Alper to speak on the issue of an XTN number. Mr. Nussbaum makes an assertion as to the legitimacy of an XTN number, however, he does not provide any foundation and misleads this Court by not explaining that the XTN number is actually self-generated by the exporter. Mr. Nussbaum wrongly claims that the XTN number contained on MTL's BOL is not legitimate as compared to Maersk's BOL;

however, as pointed out above, such numbers are self-generating by the shipper as opposed to ITN numbers that are generated by the AEX. (Exhibit 4, CBP printout).

45. Denied. See MTL's Proposed Finding of Facts: #4-5.

46. This statement is the same as #31, so the response to #31 is incorporated.

47. Denied. See the Certification of Alla Solovyeva at Docket Entry #60.

48. Denied. See response to #44.

49. Denied. The hypothetical posed involves a situation where no lien exists. Mr. Ostrovskiy abandoned the subject vehicles. See MTL's Proposed Findings of Facts.

50. Admit.

51. Denied. MTL did not produce the invoice, but rather the co-Defendant, Royal Finance Group produced such.

52. Admit.

53. Denied. Whether MEAA received Invoice 347110 from RFG should be addressed to RFT (non-party), not MTL. Additionally, in paragraph 12 of his certification (Volume 1, page 114), Mr. Safonov states that the subject vehicles were shipped to Dubai "at the request of the defendants." However, during his deposition, Mr. Safonov contradicted himself by explicitly stating:

A. I do remember that those two cars arrived into Dubai.

Q. But is it accurate to say that you don't remember Alex Solovyev proposing any business arrangement with respect to these vehicles? Correct?

A. I physically can't remember everything. We were talking about hundreds of boats, hundreds of cars.

Q. How did it come about that these vehicles ended up in Dubai?

A. I don't remember.

(p.45)

Q. So you get these vehicles, the Mercedes and Porsche, and where were these vehicles taken to?

A. Warehouse.

Q. Your warehouse?

A. Yes.

(p.53)

Q. In allegation number 127 in your third-party complaint, you allege that Andrey Tretiyakov stole the Mercedes and the Porsche at your facility at the direction and request of Aleskandr Solovyev. Is that still your claim?

A. Yes. Mercedes definitely was stolen, but Porsche I don't know whether – I'm not sure. I know the Mercedes was definitely stolen from my company, but anyway, Porsche also was given to somebody by either Tretiyakov or Bartsov, I don't know. Porsche disappeared from my company.

It is being submitted that as per Mr. Safonov's own admission, the subject vehicles were delivered to him in Dubai. He does not claim that either Mr. Solovyev or anyone from MTL stole the vehicles.

It is submitted that even though Mr. Safonov in his complaint pleaded in great details an elaborate fraud scheme into which he was induced by the defendants, he could not give any details during his deposition.

54. Admit: MEAA paid for outstanding storage charges.

55. Denied. Just the opposite is true. At the direction of Mr. Safonov, Mr. Solovyev conducted repairs of the Porsche in Staten Island. (Exhibit 5)

56. Admit.

57. Denied. Whether MEAA sent any invoices to RFG should be directed to non-party RFG, not MTL. There is no evidence that Mr. Safonov of MEAA performed any repairs for which he is seeking compensation. During his deposition, he testified as follows:

(Exhibit "2", p.46)

Q. But are there any documents in connection with the Mercedes being repaired at that facility?

A. I don't remember.

Q. So was the Mercedes repaired at that facility?

A. They used to do body repairs only.

Q. That's fine. Do you have any documents in connection with that?

A. I don't remember.

Q. Can you try to find such documents?

A. In Dubai, they don't give you any papers. Everything cash and carry in Dubai.

58. MTL has never contended that the subject vehicles were owned by Copart. See response to #24 above.

59. Denied. There is no evidence that anyone from MTL provided any of the Copart invoices with respect to the subject vehicles to MEAA. The Porsche was purchased from the IAA auction. It may have been Andrey Tretiyakov, who was the son of Andrey Bartsov, Mr. Safonov's partner. See Response to #24.

60. This question should be directed to non-party RFG, not MTL.

61. Denied. See response to #57.

62. RFG and Crocus are not parties to these proceedings. No response by MTL is required.

63. RFG and Crocus are not parties to these proceedings. No response by MTL is required.

64. Denied. The Porsche was repaired by Aleksandr Solovyev in Staten Island. There is no evidence that MEAA paid \$50,000. See response to #57 above.

65. Denied. See response to #59 & #24 above.

66. Denied. See response to #57 and 64.

67. Denied. There is no pretense. The salvage certificates prove that the subject vehicles were salvage vehicles. Furthermore, as described in #53 above, Mr. Safonov from MEAA accepted delivery of these vehicles in Dubai. MTL and non-party Aleksandr Solovyev was in New York, so it is not clear what Complainants are insinuating with respect to changing titles in Dubai.

68. Admit, except deny that Raya Bakhirev is MTL's general manager.

69. Denied. See #59 and #24 above.

70. Denied. Mr. Safonov of MEEA, successfully accepted delivery of the subject vehicles and had exclusive control. See response to #53.

71. Admit, and this is yet another admission that Mr. Ostrovskiy was in Alla Solovyeva's office. See response to #41 above.

72. Admit.

73. Denied. What constitutes "relevant portions" should be left up to the Court, not Mr. Nussbaum. The full exchange on any topic should be quoted.

74. See response to #73 above.

75. See response to #73 above.

76. See response to #73 above.

77. A response cannot be provided as it is not clear what Mr. Nussbaum is referring to.

78. Admit.

79. Admit.

80. Admit.

81. Admit.

82. MTL lacks sufficient information to admit or deny this proposed fact.

83. Admit.

84. Admit.

85. Denied as to the “unique position of trust”. See response to #82 above.

86. Denied. Alla Solovyeva is the sole owner. (Exhibit “6”).

87. Denied. Alla Solovyeva is the sole owner. (Exhibit “6”).

88. Admit.

89. Denied. Complainants failed to pay for any of the services rendered to them by MTL.

Docket Entry #60.

90. Denied. See response to #86 above.

91. MTL cannot comment as to a hearsay statement taken out of a source which has not been certified as any business record. In any case, it is not clear what the insinuation of this excerpt is by Mr. Nussbaum.

92. Denied. See response to #59 and #24 above.

93. Denied. MAVL was dissolved by Mr. Ostrovskiy. Docket Entry #60, page 7.

94. Denied. This company was dissolved by Mr. Ostrovskiy.

95. MTL is not able to admit or deny whether “IAM” was a licensed dealer. Additionally, it appears that RFG paid to the auction (IAAI) for the subject Porsche. Volume 4, page 16. This has nothing to do with MTL.

96. See response to #95 above.

97. “Max Ostrovskiy” does not appear to be written on the cited page.

98. Whether non-party, RFG, issued this invoice should be directed to RFG, not MTL.

99. MTL cannot speak to this document as this is not MTL’s document. Such document speaks for itself.

100. This is blatantly false. See response to #93. Mr. Ostrovskiy dissolved all his companies as part of this case and has disappeared. See also Docket Entry #60, pp36-44.

101. This has nothing to do with MTL or any of its employees. In any case, the translation alleges a “Betrayal of trust”, not theft or any other criminal activity. Here Mr. Nussbaum admits that his own client, Mr. Safonov, filed some kind of a criminal complaint in Dubai but not against MTL, and not against Aleksandr Solovyev, but against his own associate, Mr. Tretiykov.

102. Denied.

103. Denied. See response to #53.

104. The Tariff as filed speaks for itself.

105. Denied. See response to #59 and #24 above. The cited emails do not establish that either MTL, any of its employees, or even Aleksandr Solovyev sent any Copart invoices.

106. Admit.

107. Denied. There is absolutely no evidence that Mr. Ostrovskiy visited MTL on or about June 1, 2013, except that, as shown in Exhibit 3, Atlantic Cargo emailed MTL on November 29, 2012 and said: “The customer showed up at your premises without appointment and is not authorized to take possession of the car.”

108. The document speaks for itself and there is nothing for MTL to admit or deny.

109. Denied. See Certification of Alla Solovyeva at Docket Entry #60.

110. MTL cannot admit or deny as this question should be submitted to RFG.

111. MTL never received the referenced \$10,000, but it appears that RFG did pursuant to Mr. Nussbaum’s own statement of the proposed fact in #110.

112. Denied. This Exhibit establishes that Car Express paid for the subject Porsche.

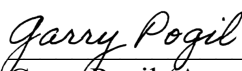
113. Admit, ocean freight never materialized. This actually shows that MTL acted in good faith by not billing for a service that never took place.

114. MTL has no knowledge of this purported transaction. This is what Mr. Ostrovskiy does; he sells property that he does not own. See Docket Entry #60, pp36-44.

115. It is not clear what Mr. Nussbaum is asking MTL to reply to in this statement, except as stated in #114 above, MTL has no knowledge of this purported transaction. This is what Mr. Ostrovskiy does; he sells property that he does not own. See Docket Entry #60, pp36-44.

116. The vehicle VIN# is accurately listed.

Dated: April 20, 2021



Garry Pogil (Attorney for Marine Transport Logistics, Inc.)